

has never been acknowledged for issues before the Enlarged Board concerning the correct application, i.e. interpretation, of substantive patent law.

B. Right to be heard

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1. Introduction

The right of parties to a fair trial is a generally recognised procedural principle under Art. 125 EPC (**T 669/90**), and is to be observed in all proceedings before the EPO (**R 2/14 of 17 February 2015**). The predictability and verifiability of all state actions are indispensable elements of the rule of law and respect for fundamental procedural rights (**G 3/08**, OJ 2011, 10). It is a fundamental right of the parties which has to be safeguarded, irrespective of the merits of the party's submissions. The necessity to respect it is absolute (**R 3/10**).

Under Art. 113(1) EPC the decisions of the EPO may only be based on grounds or evidence on which the parties concerned have had an opportunity to present their comments. The right to be heard under Art. 113(1) EPC is a fundamental principle (**J 13/10**) and of fundamental importance for ensuring a fair procedure between the EPO and a party to proceedings before it (**J 20/85**, OJ 1987, 102; **G 4/92**, OJ 1994, 149). It is intended to ensure that no party is caught unawares by grounds and evidence in a decision turning down a request on which that party has not had the opportunity to comment (**R 2/14**). In inter partes proceedings Art. 113(1) EPC reflects the principle that each party should have a proper opportunity to reply to the case presented by an opposing party (**G 4/95**).

Under Art. 113(2) EPC the EPO shall examine and decide upon the European patent application or the European patent only in the text submitted to it, or agreed, by the applicant for or proprietor of the patent. This is a fundamental procedural principle, being part of the right to be heard, such that any infringement of it, even as the result of a mistaken interpretation of a request, must, in principle, be considered to be a substantial procedural violation (**T 647/93**, OJ 1995, 132).

A violation of the right to be heard in first instance proceedings may constitute a fundamental deficiency under Art. 11 RPBA 2020 that justifies the remittal of the case to

the department of first-instance (see chapter [V.A.9.4.](#)), as well as a substantial procedural violation under [R.103\(1\)\(a\) EPC](#) that may, if equitable, justify the reimbursement of the appeal fee (see chapter [V.A.11.6.8](#)); see, for example, [T 820/10](#), [T 623/12](#), [J 13/10](#).

A fundamental violation of [Art. 113 EPC](#) in appeal proceedings can be the basis for filing a petition for review to the Enlarged Board of Appeal ([Art. 112a\(2\)\(c\) EPC](#); see chapter [V.B.4.3.](#)). A petition for review can also be based on the failure to arrange requested oral proceedings, and on the failure to decide on a party's request. Both of these additional grounds also reflect an aspect of the right to be heard (see chapter [V.B.4.4.](#) "Article 112a(2)(d) EPC – any other fundamental procedural defect"). The case law of the Enlarged Board of Appeal under [Art. 112a EPC](#) is primarily to be found in chapter [V.B.4.](#), to which the reader is also directed in order to cover all the jurisprudence in relation to the right to be heard. Decisions on the right to be heard taken by the Legal Board of Appeal and by technical boards of appeal are, on the other hand, almost exclusively dealt with in the present chapter, and only exceptionally referred to in chapter [V.B.4.3.](#) "Article 112a(2)(c) EPC – alleged fundamental violation of Article 113 EPC".

For the right to be heard in **examination proceedings**, see chapter [IV.B.2](#) (in particular chapter [IV.B.2.3](#), on the refusal of an application after a single communication and chapter [IV.B.2.6](#), on issuing a further communication). In **opposition proceedings** the right to be heard is inextricably linked to the principle of **equal treatment**, see chapter [IV.C.6.1](#) and, with regard to opposition appeal proceedings, chapter [V.B.4.3.6](#) on boards' obligation to remain neutral; as to the opposition division's obligation to invite the parties as often as necessary to file observations, see chapter [IV.C.6.2.](#); as to the opportunity to comment on new grounds of opposition, see chapter [IV.C.3.4.6](#). With regard to the observance of the right to be heard in the context of the taking of **evidence**, see chapter [III.G.3.3](#). The right to be heard may also play a role in the decision whether to accept **late filed submissions** (see chapter [IV.C.4.](#) "Late submission of documents, lines of attack and arguments"). With regard to the requirement for **reasoned decisions** under [R.111\(2\) EPC](#), see chapter [III.K.3.4](#).

2. The right to be heard under Article 113(1) EPC

2.1. Violation of the right to be heard examined ex officio

The boards of appeal can examine the facts of the case of their own motion pursuant to [Art. 114\(1\) EPC](#) and verify whether or not [Art. 113 EPC](#) has been complied with by the departments of first instance (see e.g. [T 186/02](#)).

2.2. Causal link between the violation of the right to be heard and the final decision

2.2.1 Appeal proceedings

When reviewing appeal proceedings, the Enlarged Board's review is limited to "fundamental" violations of the right to be heard. This requires a causal link between the alleged violation and the final decision. Such a causal link does not exist when, even if a procedural violation can be demonstrated, the same decision would have been taken for

other reasons (see chapter V.B.4.3.2 ""Fundamental" violation of Article 113 EPC – causal link and adverse effect").

2.2.2 First instance proceedings

When reviewing first instance proceedings the boards' review is, in principle, not limited to fundamental violations of the right to be heard.

However, remitting a case to the department of first-instance under Art. 11 RPBA 2020 also requires a "fundamental" deficiency in first instance proceedings, and under R. 103(1)(a) EPC the appeal fee is only reimbursed in case of a "substantial" procedural violation. In T 689/05 the board linked these concepts, stating that a "fundamental" deficiency within the meaning of Art. 11 RPBA is not caused by all procedural violations but rather only by a "substantial" procedural violation. In J 7/83 a substantial procedural violation was defined as an objective deficiency **affecting** the entire proceedings, in T 682/91 as a deficiency adversely **affecting** the rights of the parties (see chapter V.A.11.6.2 "Violation must be substantial and affect the entire proceedings").

In T 990/91 the lack of opportunity to reply to a supererogatory and incidental argument put forward by the examining division could not be considered to be a violation of the right to be heard, let alone a substantial one.

2.3. Surprising grounds or evidence

2.3.1 General principles

Art. 113(1) EPC requires that decisions may only be based on grounds or evidence on which the parties concerned have had an opportunity to present their comments.

According to the Enlarged Board of Appeal (see chapter V.B.4.3.8 "Reasons for a decision allegedly surprising"), this implies that a party may not be taken by surprise by the reasons of a decision, referring to unknown grounds or evidence (R 3/13; see also T 1378/11). A purely subjective surprise, however, has no bearing on whether a party had an adequate opportunity to comment. "Grounds or evidence" within the meaning of Art. 113(1) EPC need not emanate from the board, it is sufficient if another party raises the objection (R 2/08). If the reason given in a decision corresponds to an argument put forward by the other party (see also T 405/94), the petitioner was aware of it and thus not taken by surprise (R 4/08, R 12/09 of 15 January 2010, R 8/14) unless the board clearly indicated that it regarded those arguments as not convincing (R 11/12).

In T 996/09 the board held that the right to be heard was a fundamental guarantor for the parties that proceedings before the EPO would be conducted fairly and openly (with further reference to J 20/85 and J 3/90) and was intended to ensure that the parties to the proceedings were not taken by surprise by grounds mentioned in an adverse decision (following T 669/90, T 892/92, T 594/00 and T 343/01; see also T 197/88, T 220/93). In T 435/07 the board held that the grounds on which a decision were based had to be communicated to the applicants in such a way that they were put in the position to defend